

Smt. Jaya Soni Kakkar vs Smt. Sundri on 11 October, 2021

IN THE COURT OF MS. DEEKSHA RAO : CIVIL JUDGE-04:
CENTRAL DISTRICT: TIS HAZARI COURT: NEW DELHI

Civil Suit No. 598091/16

IN THE MATTER OF

Smt. Jaya Soni Kakkar,
D/o Late Sh. Laxmi Narayan,
R/o H.No. 2575, Block-B, Gali No. 66,
Sant Nagar, Burari,
Delhi-110084.

... Plaintiff

Versus

Smt. Sundri,
D/o Sh. Prakash Singh,
R/o H.No. 5357/6, Harijan Basti,
New Chanderawal, Malka Ganj,
Delhi-110007.

Also at
H.No. 2575, Block-B, Gali No. 66,
Sant Nagar, Burari,
Delhi-110084.

... Defendant

Date of filing	:	26.10.2013
Date of Institution	:	28.10.2013
Date of pronouncing judgment	:	11.10.2021

SUIT FOR POSSESSION , RECOVERY OF DAMAGES /
MESNE PROFIT AND PERMANENT INJUNCTION

Vide this judgment, I shall dispose of the present suit

filed by the plaintiff against the defendant for possession,
CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 1 of 21

recovery of damages / mesne profits and permanent

injunction. The brief facts necessary for the disposal of the

case may be described as under :-

Plaintiff's case as per the plaint.

1. In the plaint, the plaintiff submitted that the deceased parents of the plaintiff, Sh. Laxmi Narayan and Soni and Smt. Punno Devi were the joint owners of a plot measuring 400 Sq Yards in village Burari, in the abadi known as Sant Nagar, out of Khasra No. 135/25(6-3).

2. It is further submitted that the mother of the plaintiff expired on 23.05.1990 and her father expired on 25.07.1992, leaving behind six sons and four daughters. It is further submitted by the plaintiff that out of the 400 Sq yards, 250 Sq yards were sold out by her parents and the remaining 150 Sq yards was mutually partitioned between the brothers of the plaintiff in the year 1998. The portion of each of them has been specifically shown in the site plan attached with the plaint. It is further stated by the plaintiff that according to the mutual partition between the brothers of the plaintiff, the no. 5 brother of the plaintiff, namely, Deepak Soni (since deceased) was the

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 2 of 21

owner and in possession of his portion of the property as obtained by him pursuant to the mutual partition and as shown in red colour in the site plan annexed with the plaint. The same is hereinafter referred as the suit property. As per the plaintiff, Deepak Soni was unmarried and was living alone in his portion of the suit property.

3. The plaintiff has stated that the deceased Deepak Soni used to work in a sticker making factory and the defendant who was already a married woman also used to work in the

same factory. It is further stated by the plaintiff that the defendant in order to usurp the property owned by Deepak Soni hatched up a conspiracy along with her father and started residing with him in the aforesaid property for a few days in a month. In pursuance of the aforesaid conspiracy, the defendant pressurized Deepak Soni to execute some title documents in respect of the suit property in her favour and she also got fabricated some documents i.e. birth certificate of her children, ration card etc. in order to show herself as the wife of Deepak Soni and her children to be the children of him and resident of the suit property. However, the defendant is neither

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 3 of 21

the legally wedded wife of Deepak Soni nor the children of defendant are the children of Deepak Soni.

4. The plaintiff further submits that as Deepak Soni was never ready to sell his property to the defendant and in order to avoid unlawful harassment and complication, Deepak Soni relinquished his share in the aforesaid property in favour of the plaintiff vide registered relinquishment deed dated 13.01.2011. In pursuance of the said relinquishment deed, the plaintiff became exclusive owner of the suit property. Deepak Soni expired on 11.05.2013 and he died intestate and unmarried. The defendant as per the plaintiff has been residing in the suit property illegally, unlawfully and without any legal right, title or interest as she was never married to Deepak Soni. The defendant has been occupying and enjoying the property

illegally and unlawfully and since such occupation is without any right title or interest, she is a trespasser in the suit property.

5. In this background the plaintiff has filed the present suit against the defendant and has prayed for the grant of following reliefs:

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 4 of 21

a. A decree for possession be passed in favour of the plaintiff and against the defendant in respect of the property as shown in red colour in the site plan (hereinafter referred to as the suit property) attached with the plaint.

b. A decree for damages / mesne profits @ 5000/- per month from 01.09.2013 till recovery of possession.

c. A decree for permanent injunction be passed in favour of the plaintiff and against the defendant and thereby restraining the defendant from creating any third party interest in the suit property.

Defendant's case as per the written statement.

6. The defendant filed written statement to the suit of the Plaintiff and raised certain preliminary objections against the suit of the Plaintiff which are not being described herein for the sake of brevity. It may be noted that in the written statement the defendant has submitted that the Plaintiff is not the owner of the suit property. It is admitted by the defendant that the parents of the plaintiff purchased a plot measuring 400 Sq yards in their joint names, however, the property in question

was never mutually partitioned between the brothers of the

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 5 of 21

plaintiff. It is stated by the defendant that she met with late

Deepak Soni at the Tray making factory as both of them were

working together, and thereafter both of them married each

other out of their free will and with the consent of defendant's

parents. It is further stated that out of the said wedlock three

sons and one daughter were born. The elder son died at the

age of six years. As per the defendant, at the time of execution

of the relinquishment deed Deepak Soni was unable to

distinguish between right and wrong as he had lost his state of

health and mind due to aids, narcotics, drinking, T.B. etc.

Further, it has been stated that the relinquishment deed is of

1/10th share of property measuring 200 sq. yds., whereas in

the plaint, the plaintiff has stated that the property left after

selling 250 sq. yds., is 150 sq. yds. The defendant has claimed

ownership for herself and her children with respect to the suit

property as being the wife of deceased Deepak Soni. The

defendant has denied the site plan annexed by the plaintiff and

has stated it to be false and illegal. It is submitted by

defendant that the defendant and her children are the owners

and in possession of the property by virtue of inheritance.

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 6 of 21

Issues:-

7. Out of the pleadings of the parties, vide order dated

04.11.2015, the following issues had been framed by the

court.

1. Whether the Court has pecuniary jurisdiction in the present suit, if not so, its effect ? OPP.
2. Whether the plaintiff is entitled to the decree of possession as claimed for ? OPP.
3. Whether the plaintiff is entitled to damages/mesne profits, if any, at what rate and for what period ? OPP.
4. Whether the plaintiff is entitled to decree of permanent injunction as prayed for ? OPP.
5. Relief.

Plaintiff's Evidence:-

8. In order to prove their case against the defendant, the plaintiff's side got examined three witnesses.

PW-1 was Jaya Soni Kakkar, the plaintiff in the present suit who tendered her evidence which is Ex. PW1/A and she relied upon the following documents.

- a) Ex. PW1/1 is original sale documents in favour of the parents of the plaintiff.
- b) Ex PW1/2 death certificate of Smt. Punno Devi,

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 7 of 21

- c) mother of the plaintiff.
- d) Ex. PW1/3 death certificate of Sh. Laxmi Narayan, father of plaintiff.
- e) Ex. PW1/4 is the site plan.
- f) Ex. PW1/5 is the relinquishment deed.
- g) Ex. PW1/6 is the complaint to the police station Burari dated 23.04.2013.
- h) Ex. PW1/7 is the legal notice to the defendant.
- i) Ex. PW1/8/1 to Ex.PW1/8/4 are the original postal receipts.
- j) Ex.PW1/9 is the reply to the legal notice by the defendant.

PW-2 was Const. Dharmendra who had brought the summoned record i.e. the complaint dated 23.10.2013. The copy of the same is Ex.PW2/1.

PW-3 was Sh. Bakhtawar Singh who tendered his evidence by way of affidavit which is Ex. PW3/A.

Thereafter, on conclusion of the cross examination of plaintiff's witnesses, on 10.07.2017 plaintiff's evidence was closed.

Defendant's Evidence.

9. To disprove the case of the plaintiff, two witnesses were examined on behalf of the defendant.

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 8 of 21

DW-1 was Smt. Sundri, who is defendant in the present matter tendered her evidence by way of affidavit which is Ex. DW1/A and she relied upon documents the following documents i.e.

- a) Copy of Voter ID Card as Ex.DW1/1 (colly).
- b) Copy of MCD Birth Certificate showing parentage as Ex.DW1/2 (colly).
- c) Statement of late Deepak Soni as Ex.DW1/3.
- d) Copy of FIR as Ex.DW1/4.

DW-2 was Smt. Geeta, who tendered her evidence by way of affidavit which is Ex. DW2/A and she relied upon document Ex. DW2/1. Thereafter on conclusion of cross examination of the defendants witness on 11.03.2020, DE was closed.

Findings:

10. I have heard the arguments made by the Ld. Counsel for the Plaintiff as well as the Ld. Counsel for the defendant and have also perused the case record in detail. On the basis of the evidence/material available on record, the issue wise findings of this Court are as under:-

1. Whether the Court has pecuniary jurisdiction in the present suit, if not so, its effect ? (In view of the

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 9 of 21

clarification sought and perusal of the record the onus

of proving the present issue is considered as OPD)?

Plaintiff has valued her suit for the relief of possession at Rs. 2,00,000/- for the purpose of jurisdiction, pleading that market value of suit property at the time of filing of the suit was Rs. 2,00,000/-. Defendant in her written statement pleaded that the suit value was more than Rs.50,00,000/- at the time of filing of the suit. However, the defendant has not challenged this valuation and has not projected or proved any other market value of the suit property at the time of filing of the suit. In these circumstances, as far as question of valuation of the suit for the purpose of pecuniary jurisdiction is concerned, there is no reason and material on record to disbelieve the valuation given by the plaintiff. It was incumbent upon the defendant to prove that the present suit has not been correctly valued however, there is not even a single document to substantiate the abovementioned issue. Accordingly, keeping in mind that no evidence has been adduced by the defendant, the issue is decided against the defendant.

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 10 of 21

Issues no.2 & 4 :-

2. Whether the plaintiff is entitled to the decree of possession as claimed for ? OPP.

and

4. Whether the plaintiff is entitled to decree of permanent injunction as prayed for ? OPP.

For the sake of convenience, both these issues are being decided together as they are inter connected and onus to prove the same is on plaintiff. As stated earlier, it is the case of the plaintiff that she is the owner and is entitled to the possession of the suit property. Having obtained the right to possess the same in lieu of the registered relinquishment deed dt. 13.01.2011. Whereas, on the other hand, the defendant has denied the right of the plaintiff to the suit property and has claimed her right of possession in the suit property as being the wife of the deceased Deepak Soni, brother of the plaintiff, and by whom the alleged relinquishment deed has been executed. The plaintiff has refuted the status of wife to the defendant and has stated that late Deepak Soni was never married and he died the same.

The defendant has denied all the claims of the plaintiff and has pleaded herself as the wife and her children as the children of Deepak Soni and hence has claimed entitlement to her share in the suit property by virtue of inheritance.

In order to prove her case against the defendant, the plaintiff got examined three witnesses. PW-1 was the plaintiff

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

Judgment dated 11.10.2021

Page no. 11 of 21

herself and she tendered her evidence affidavit which is Ex.PW1/A. In her examination in chief, PW-1 relied upon documents Ex.PW1/1 to Ex.PW1/9. Ex.PW1/5 is the registered relinquishment deed dt. 13.01.2011 and is the essential document based on which the plaintiff is seeking the relief under discussion.

At this stage, before examining whether the plaintiff has discharged her onus, it is appropriate to take note of the procedure prescribed for proof of execution of documents under the Indian Evidence Act, 1872. In this regard, reference has to be made to Section 68 of Indian Evidence Act. The same is reproduced herein :

Section 68

Proof of execution of document required by law to be attested--If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there be an attesting witness alive, and subject to the process of the Court and capable of giving evidence: [Provided that it shall not be necessary to call an attesting witness in proof of the execution of any document, not being a Will, which has been registered in accordance with the provisions of the Indian Registration Act, 1908 (16 of 1908), unless its execution by the person by whom it purports to

CS No.98091/2016

Jaya Soni Kakkar Vs. Sundri

have been executed is specifically denied.

It can be seen from the Record that the disputed relinquishment deed is registered and therefore as is the guiding principle the said document is presumed to be genuine as was also held by the Hon'ble Supreme Court in the case of Prem Singh & Ors. vs. Birbal & Ors. (2006) 5 Supreme Court Cases 353. The relevant portion of the said Judgment read as follows :

"There is a presumption that a registered document is validly executed. A registered document, therefore, prima facie would be valid in law. The onus of proof, thus, would be on a person who leads evidence to rebut the presumption. In the instant case, Respondent

No.1 has not been able to rebut the said presumption."

The same position has recently been reiterated by the Hon'ble Supreme Court in the case of Rattan Singh & Ors. vs. Nirmal Gill & Ors.

(2020) SCC OnLine SC 936 . The relevant portion of the said Judgment read as follows :

"32. To appreciate the findings arrived at by the Courts below, we must first see on whom the onus of proof lies. The record reveals that the disputed documents are registered. We are, therefore, guided by the settled legal principle Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 13 of 21 that a document is presumed to be genuine if the same is registered, as held by this Court in Prem Singh and Ors. v. Birbal and Ors."

Coming to the facts of the present case the plaintiff in order to prove the execution of the said document has got herself examined. Despite various opportunities, the defendant failed to cross-examine PW-1 and accordingly, her right to cross-examine PW-1 was closed. PW-1 has also got examined PW-3 i.e. the attesting witness to the said document. In his evidence affidavit, PW-3 namely Sh. Bhakatwar Singh has deposed that the said document was executed in his presence and the same was signed by Deepak Soni and by the plaintiff before him. He has further stated that he had also signed the said document. Opportunity was given to the defendant to cross-examine PW-3 on this aspect i.e. with respect to the execution of the relinquishment deed.

At this stage, the court deems it fit to refer to the observation made by the Hon'ble Delhi High Court in Surrender Rode vs. Madan Mohan Rode & Ors. RFA No.765/2006 wherein it was observed that non-cross- examination of a witness on a particular aspect tantamounts to the fact that the cross-examination party is accepting such part of the deposition. The relevant para is quoted here as under

for the sake of clarity:

"27... Not a single question was put to him in cross examination on the said aspect. The Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 14 of 21 inference in law from noncross examination of a witness on a particular aspect of his deposition is well settled i.e. that the cross examining party is deemed to have accepted the said part of the deposition. Reference in this regard can be made to Laxmibai (Dead) Through LR's Vs. Bhagwant Buva (Dead) Through LR's (2013) 4 SCC 97, Rajinder Pershad (Dead) by LR's Vs. Darshana Devi (2001) 7 SCC 69 and judgment dated 19th September, 2013 in RFA No.411/2000 titled Chanchal Dhingra Vs. Raj Gopal Mehra..."

In light of the above held, legal position and facts, the deposition of PW-3 as to the aspect of execution of the relinquishment deed can very well be taken to be true and duly proved.

On the other hand, it is to be noted that the defendant in her pleadings has not denied the execution of the said relinquishment deed but has stated that the same was executed by late Deepak Soni in an unfit state of mind. However, no evidence has been led by the defendant to affirm her submissions rather the defendant has claimed her right to the suit property on the ground that she is the legally wedded wife of Deepak Soni and hence is entitled to the right of possession and her share in the suit property. In order to support her this contention the defendant has placed reliance Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 15 of 21 on a number of documents i.e. Adhaar Card, Voter ID Card, Birth Certificates of her children etc. Before going further, it would be relevant to discuss the settled legal position with respect to the valid Hindu Marriage. It is well settled that in order to prove a valid Hindu Marriage, the requirement of Section 5 & 7 of the Hindu Marriage Act, 1955 has to be fulfilled. The same are being reproduced here for the sake of convenience:

Section 5 Conditions for a Hindu marriage : A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:-

- (i) neither party has a spouse living at the time of the marriage;
- (ii) at the time of the marriage, neither party
 - (a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or
 - (b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or
 - (c) has been subject to recurrent attacks of insanity;

(iii) the bridegroom has completed the age of [twenty-one years] and the bride, the age of [eighteen years] at the time of the marriage;

(iv) the parties are not within the degrees of Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 16 of 21 prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

Section 7 Ceremonies for a Hindu marriage.

(1) A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto.

(2) Where such rites and ceremonies include the saptpadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken.

From the reading of the above stated sections it can be said that it is essential to prove that the marriage between the parties was duly solemnized as per the requirement laid down by the Act and it is only when the solemnisation in terms of section 7 of the Hindu Marriage Act, 1955 is proved that a valid marriage can be presumed between the parties as was also observed by the Hon'ble Supreme Court in the case of Priya Bala Ghosh v Suresh Chandra Ghosh 1971 AIR 1153, Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 17 of 21 wherein the court held as follows : "The word 'solemnize' means in connection with a marriage, 'to celebrate the marriage with proper ceremonies and in due form, according to the Shorter Oxford Dictionary. It follows, therefore, that unless the marriage is 'celebrated or performed with proper ceremonies and due form' it cannot be said to be 'solemnized'."

In the present case, DW-1 i.e. the defendant herein has relied upon documents exhibited as Ex.DW1/1 to Ex.DW1/4 in her evidence by way of affidavit. Ex.DW1/1 to Ex.DW1/2 are the Voter ID card and copies of birth registration certificate. In light of the above stated, legal position, it can be safely held that the marriage cannot be presumed on the basis of certain documents before government Authorities. Further, in her cross-examination, DW-1 has failed to recollect the date of her marriage and has also not placed on record any photographs, wedding invitation etc., of her marriage to late Deepak Soni. In support of her plea, the defendant got examined DW-2 who is the sister of DW-1 as a witness, the said witness on her being asked has deposed that DW-1 got married on 15.04.2001 to Deepak Soni. DW-2 has also placed on record a photograph as Ex.DW2/1 showing DW-1 performing certain customary puja in the year 2018. Besides, there being no mandatory Section 65B certificate filed on behalf of the defendant to prove the authenticity of such photograph, it is to be noted that as deposed the photograph is of the year 2018 whereas Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 18 of 21 Deepak Soni is stated to have died on 11/05/2013 and which is an admitted position on the part of both the parties. Further a marriage

can't be presumed even on the basis of the said photograph. The defendant has failed to prove the performance of essential ceremonies as required for the purpose of a valid marriage.

After appreciating the testimonies of all the witnesses as well as the documents placed on record, it can be safely said that the plaintiff has proved the relinquishment deed, the execution of which has not even been denied by the defendant. Further, the defendant has failed to prove a valid legal marriage of her to late Deepak Soni. The documents placed on record by the defendant i.e. the birth certificates of her children can at best be considered as the proof of paternity of the children of the defendant but the same cannot be considered as a proof of valid marriage.

The plaintiff has discharged her onus to prove her having right to possession in the suit property as being the owner of the property in terms of the registered relinquishment deed and is also held entitled for the relief of permanent injunction and hence issue no 2 and 4 are decided in favour of the plaintiff and against the defendant.

Issue No.3.

Whether the plaintiff is entitled to damages/mesne profits, if any, at what rate and for what period ?
OPP.

Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 19 of 21 As far as issue No.3 i.e. whether the plaintiff is entitled to recover damages / mesne profit is concerned to this, it is pertinent to mention here that in her plaint as well as evidence affidavit the plaintiff has categorically mentioned that since the plaintiff is entitled to possession of suit property and is the owner of the property in terms of registered relinquishment deed and the defendant having failed to prove her entitlement, she is nothing but a trespasser in the suit property. Once, it is held that the plaintiff is entitled to possession of the suit property then it is clear that she is entitled to mesne profit / damages. The other question that has to be decided in the present matter is as to at what rate the plaintiff is entitled to mesne profit. To this, it is observed that the plaintiff in her plaint in para No.20 and in her evidence by way of affidavit in para No.19 has categorically averred that the plaintiff is entitled for recovery of damages from defendant @ Rs.5,000/- per month from 01.09.2013 till recovery of possession. It is pertinent to mention that the defendant in her cross-examination has stated that the area she is occupying i.e. suit property can be taken on rent @ Rs.5,000/- per month. Accordingly, this issue is decided in favour of the plaintiff and it is held that the plaintiff is entitled for recovery of Rs.5,000/- per month from 01.09.2013 till actual recovery of suit property. RELIEF

11. In view of the abovementioned issue wise findings, the suit of the plaintiff is hereby decreed. Following reliefs are Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 20 of 21 awarded in favour of the plaintiff and against the defendants:

- a. A decree of possession in favour of the plaintiff and against the defendant in respect of the property as shown in red colour in the site plan attached with the plaint.

b. A decree for damages / mesne profits @ Rs.5,000/- per month from 01.09.2013 till recovery of possession is also passed in favour of the plaintiff and against the defendant. No order as to interest on the damages/mesne profits.

c. A decree for permanent injunction is passed in favour of the plaintiff and against the defendant and thereby restraining the defendant from creating any third party interest in the suit property.

d. Costs of the suit.

12. The decree of damages/mesne profits shall not be executable till the filing of the court fee on the same.

Decree Sheet be drawn accordingly. File be consigned to Record Room after due compliance.
Digitally signed by DEEKSHA DEEKSHA RAO RAO Date:

2021.10.11 16:45:51 +0530 (Deeksha Rao) CJ-04, Central,THC/Delhi Announced in the open Court on this 11th day of October, 2021 This judgment consists of 21 signed pages.

Jaya Soni Kakkar Vs. Sundri Judgment dated 11.10.2021 Page no. 21 of 21